

of the trustee occurred prior to the commencement of that act.] The rule as originally established was, that a general expression would carry a dry trust estate (*d*), but afterwards there were some misgivings upon the subject (*e*) (1); and the Court at last acceded to the proposition, that general words would *not* pass trust estates, unless there appeared a positive *intention that they should so pass (*a*). The question was reconsidered before Lord Eldon, when the result of the cases, after a careful examination of them, was declared to be, that, *where the will*

(*d*) *Marlow v. Smith*, 2 P. W. 198.

(*a*) *Attorney-General v. Buller*, 5

(*e*) See *Braybrooke v. Inskip*, 8 Ves. 340.
Ves. 437.

(1) **How the opinion arose that a general devise would not pass a trust estate.**—The doubt appears to have originated in part from an expression of Lord Hardwicke in *Casborne v. Scarfe*, 1 Atk. 605, that by a devise of all lands, tenements and hereditaments, a mortgage in fee would not pass, unless the equity of redemption were foreclosed. But Lord Hardwicke was not speaking here of the legal estate, but of the beneficial interest in the mortgage. The same thing was said in the same sense in *Strode v. Russel*, 2 Vern. 625. Lord Hardwicke's authority has been cited on both sides of the question (compare *Duke of Leeds v. Munday*, 3 Ves. 348, with *Ex parte Sergison*, 4 Ves. 147;) but that he approved of the old rule is evident from *Ex parte Bowes*, cited in Mr. Sanders's note to *Casborne v. Scarfe*, 1 Atk. 605. Lord Northington and Lord Thurlow are said to have entertained the same opinion. (See *Ex parte Sergison*, 4 Ves. 147; but, as to Lord Thurlow, see an *obiter dictum*, *Pickering v. Wowles*, 1 B. C. C. 198.)

and assigns, to and for his and their use and benefit; *Abbott*, Petr. 55 Me. 580; mortgage estates may pass by devise, though charged with debts and legacies; *Ballard v. Carter*, 5 Pick. 112; *Richardson v. Woodbury*, 43 Me. 206; whether the devisee or an heir can execute a trust depends upon the instrument as showing the settlor's intention; *Abbott*, Petr. 55 Me. 580; in some states the court appoints new trustees, if the original trustees die; *Hawley v. Ross*, 7 Paige, 103; *Clark v. Crego*, 47 Barb. 599; *Hook v. Dyer*, 47 Mo. 241; *McDougald v. Carey*, 38 Ala. 320; contra in New Jersey; *Schenck v. Schenck*, 16 N. J. Eq. 174; a trust estate cannot be divided; *Baldwin v. Humphrey*, 44 N. Y. 609; *Saunders v. Schmaelzle*, 49 Cal. 59; the survivor of the trustees, then the heir or representative, receives the trust estate; *Whiting v. Whiting*, 4 Gray, 236; *Webster v. Vandevanter*, 6 Gray, 429; *Powell v. Knox*, 16 Ala. 364; *De Peyster v. Ferrers*, 11 Paige, 13; *Gray v. Lynch*, 8 Gill. 404; *Keister v. Howe*, 3 Ind. 268; the surviving trustee cannot be disturbed by the representatives of his cotrustees; *Shook v. Shook*, 19 Barb. 653; he may sue by himself; *Richeson v. Ryan*, 15 Ill. 13; and his executors or administrators may continue the proceedings; *Maudlin v. Armistead*, 14 Ala. 702; *Nichols v. Campbell*, 10 Gratt. 561; but actions must be in the names of the parties to the contract; *Childs v. Jordan*, 106 Mass. 323; *Farrelly v. Ladd*, 10 Allen, 127.